



DEPARTMENT OF PUBLIC SAFETY

Colorado State Patrol Investigative Services Section

COLORADO AUTOMOBILE THEFT PREVENTION AUTHORITY

8 CCR 1507-50

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

CATPA 1: AUTHORITY TO ADOPT RULES AND REGULATIONS

The Executive Director of the CDPS is authorized by §42-5-112 (3) (f), CRS, to adopt rules and regulations applicable to the review and approval of grant applications received and reviewed by the CATPA Board from law enforcement agencies and Qualified Applicants for programs and activities consistent with §42-5-112 (3) (f), CRS. Programs consistent with §42-5-112 (3) (f), CRS, include those programs requesting assistance to support or improve automobile theft prevention or enforcement within the state of Colorado or the prosecution thereof through statewide planning and coordination consistent with statute and as enumerated through these rules.

CATPA 2: APPLICABILITY

These rules and regulations shall apply to the review and approval of all grant applications by law enforcement agencies or other Qualified Applicants to the CATPA Board requesting financial support or assistance for programs and/or activities consistent with §42-5-112 (3) (f), CRS.

CATPA 3: DEFINITIONS

Unless otherwise specified, the following definitions apply to these rules:

- 3.1. **AUTOMOBILE:** An automobile is a motor vehicle as defined within §42-5-101 (5), CRS, which is any vehicle of whatever description propelled by any power other than muscular, except a vehicle running on rails.
- 3.2. **CATPA:** Defined under §42-5-112 (1), CRS, and is referred to throughout these rules as the Colorado Automobile Theft Prevention Authority.
- 3.3. **CATPA BOARD ("BOARD"):** Created by §42-5-112 (2), CRS, the board that solicits, reviews, awards, and evaluates grant projects funded under §42-5-112 (4), CRS. Referred to throughout these rules as the "Board."
- 3.4. **CATPA GRANT MANAGERS GUIDANCE MANUAL (GMG):** The guidance publication approved by the Board that provides information on grant application requirements and processes. The GMG is updated annually and the most current version publicly available applies to these rules.
- 3.5. **CDPS:** Colorado Department of Public Safety.
- 3.6. **CSP:** Colorado State Patrol.
- 3.7. **CSP CATPA BUSINESS UNIT:** The business unit within the CSP that is responsible for the day-to-day operations and support of the Board, consistent with §42-5-112 (3) (c) and (d), CRS.

- 3.8. GRANT-FUNDED INITIATIVES:** the CATPA Board will consider grant applications that meet one or more of the following Initiatives:
- 3.8.1. DEDICATED AUTOMOBILE THEFT PROSECUTION PROGRAMS:** Initiatives that focus on the support of one or more dedicated prosecutors who have the specific mission and expertise to provide legal guidance and prosecutorial continuity to complex criminal cases arising from the activities of a multi-agency law enforcement program. These programs support the ability of prosecutors to coordinate across jurisdictional boundaries to effectively identify and prosecute automobile theft, fraud, and related crimes, primarily those involving prolific, repeat, or habitual offenders.
- 3.8.2. ENFORCEMENT:** Initiatives that may include a Colorado law enforcement program and focus on reducing automobile theft, fraud, and related crimes using and otherwise supporting a variety or combination of Enforcement Models, such as a Multi-Agency or Multi-Crime Real Crime Center, Informal Deployment Program, Problem-Oriented Directed Model, Analytically Oriented Directed Model, Saturation Patrol Model, or Investigative Intelligence-Led Policing Model.
- 3.8.3. FIRST-TIME OFFENDER REHABILITATION PROGRAMS:** Initiatives that include programs focused on the prevention of future criminal behavior by first-time offenders who have been charged, convicted, or adjudicated for automobile theft.
- 3.8.4. PREVENTION, EDUCATION, AND OUTREACH:** Initiatives that focus on the reduction of the public's victimization by automobile theft, fraud, and related crimes through crime prevention activities, public outreach, and public awareness campaigns. These programs include:
- 3.8.4.1. PUBLIC EDUCATION AND PREVENTION:** Efforts to modify an observable change in human behavior related to the viable threat, impact, or exposure of automobile theft and related crimes by engaging in behavior modification techniques proposed for decreasing automobile theft. public education projects are typically aimed at high-risk factors that may include populations, geographical areas, environmental conditions, and most-at-risk stolen vehicle owners with the intent to use classical conditioning and/or operant conditioning methods to modify the behavior of the automobile owners and/or drivers as public education and prevention efforts focus on behavioral change. Observations and data results are typically relied upon to demonstrate and determine the effectiveness of programs.
- 3.8.4.2. PUBLIC OUTREACH AND AWARENESS:** Efforts communicating general messages, dangers, and prevention techniques to minimize the risk of victimization by automobile theft, public outreach, and awareness. This process typically involves developing and communicating factual information to a selected group or the general public to increase the level of understanding, attentiveness, alertness, or attention on or to the risk behaviors or incidences of automobile theft.
- 3.8.4.3. VEHICLE SYSTEMS HARDENING:** Efforts focused on elevating vehicle security systems to safeguard automobiles from theft, fraud, and related crimes, including after-market engine immobilizers, battery immobilizers, steering wheel locks, tire locks, hitch locks, vehicle security software upgrades/updates, owner applied trackers, mechanical marking products, alarms, or other vehicle security tools, products or techniques designed and intended to reduce vulnerabilities in existing automobile technology and mechanical systems.

- 3.8.5. TECHNOLOGY ENHANCEMENT:** Initiatives that focus on the improvement, development, augmentation or acquisition of existing or new technology to identify, track, analyze or study the crime of automobile theft, fraud, and related crimes using information technology consistent with §24-72-113, CRS, (Passive Surveillance Records), §24-74-102 (1), CRS, (Personal Identifying Information), and 28 CFR Part 23 (Criminal Justice Information Sharing). Technology enhancements may include components to heighten the capabilities of the Automobile Theft Tracking and Reporting System, such as the use of Automated License Plate Reader Systems, the Colorado Stolen Vehicle Database Repository, and other information system(s) that may elevate and improve CATPA'S capability for information and intelligence regarding the reduction of automobile theft.
- 3.8.6. TRAINING:** Initiatives that include programs that provide or develop specialized training for automobile theft, fraud, and related criminal investigations for personnel, including but not limited to law enforcement personnel, County Title and Registration Clerks, Division of Revenue Title Clerks, and Port of Entry Officials to enhance knowledge, skills, procedures, and systems to detect, prevent, and combat automobile theft, fraud, and related crimes.
- 3.8.7. VICTIM SUPPORT:** Initiatives that focus on servicing the needs of victims and may include a variety of assistance including options for alternative transportation, payment of storage and/or towing fees, costs of vehicle cleaning, reimbursement of limited necessary repairs, insurance deductible assistance, and other assistance reasonably related to negating the consequences of automotive or automobile theft-related crime.
- 3.8.8. OTHER PROGRAMS:** Initiatives that involve grant programs addressing automobile theft or automobile theft-related crimes from outside or beyond the scope or subject matter areas already identified by 3.8.1 through 3.8.7 of these rules. Examples include initiatives addressing automobile theft or automobile theft-related crimes through research and development, special studies, business development, venture project investments, security redevelopment, etc.
- 3.9. QUALIFIED APPLICANT:** A Colorado law enforcement agency, a state agency, a local unit of government, an independent school district, or a not-for-profit or for-profit organization that can demonstrate its proposed program addresses some aspect of automobile theft prevention.

CATPA 4: GRANT APPLICATIONS- SUBMISSION AND CONTENT

- 4.1. APPLICATION SUBMISSION PERIOD.** The Board will announce annually in writing the availability of grant funding and the start of the application submission period. Notice may include mailings, posting online at [HTTPS://LOCKDOWNYOURCAR.ORG/GRANTS/](https://LOCKDOWNYOURCAR.ORG/GRANTS/), and through other agencies and organizations. Interested Parties may also contact CATPA by EMAIL at CDPS_CATPA@STATE.CO.US for grant funding and submission information.
- 4.2. APPLICATION FORMAT AND REQUIRED CONTENT.** All applications shall be in the form required by the grant announcement(s), consistent with the requirements set forth within the statute, these rules, and the CATPA GMG.
- 4.2.1.** Each application shall specifically describe, at minimum, the type of automobile theft, prevention, education, outreach, enforcement, specialized training, prosecution, first-time offender rehabilitation, victim support program, technology enhancement, or other programs addressing automobile theft being proposed.
- 4.2.2.** All grant applications must include or address the required information, form(s), and instruction(s) provided in the CATPA GMG.

- 4.3. METHOD AND DELIVERY OF APPLICATION SUBMISSION.** Applications shall be filed with the Board as directed in the grant application, notice, and/or instructions.

CATPA 5: GRANT AWARDS- BOARD EVALUATION AND AWARD SELECTION

- 5.1. USE OF CATPA GMG.** The Board shall review applications consistent with the statute, these rules, and with guidance provided within the most current publication of the CATPA GMG.
- 5.2. MULTIJURISDICTIONAL PRIORITY.** Consistent with §42-5-112 (3) (a), CRS, these rules, and the CATPA GMG, the Board shall give priority to those grant applications representing multijurisdictional programs.
- 5.3. MINIMUM DESCRIPTION REQUIRED.** All applications must, at minimum, describe the type of automobile theft prevention, education, outreach, enforcement, specialized training, prosecution, first-time offender rehabilitation, victim support program, technology enhancement, or other programs addressing automobile theft being proposed.
- 5.4. APPLICABLE REVIEW GUIDELINES.** The Board shall review each application to determine if the submitting entity meets the definition of a Qualified Applicant and for its completeness. The Board will then further review applications received according to the following guidelines:
- 5.4.1.** Whether the application clearly identifies an automobile theft problem that is measurable and is supported by relevant statistical evidence.
 - 5.4.2.** Whether the application minimizes duplicative or overlapping existing programs.
 - 5.4.3.** Whether the application provides a design wherein goals, measurements, and activities are realistic and attainable.
 - 5.4.4.** Whether the application displays innovation in its concept, design, and/or operation. A project is considered innovative if it provides a new and different strategy or approach that prevents, deters, intervenes, or reduces the occurrence of automobile theft-related criminal activity as compared to strategies or approaches implemented having the same design or scope by another state or country.
 - 5.4.5.** Whether the application demonstrates a realistic cost structure as compared against application goals (cost vs. benefit).
 - 5.4.6.** Whether the application includes a proposed evaluation design supported by relevant data to measure the effectiveness of the project and a plan for completing said evaluation consistent with applicable grant reporting requirements.
- 5.5. REVIEW EQUITY.** The Board will apply applicable statutes, these rules, and the CATPA GMG to ensure equitable review of grant applications received from law enforcement agencies and other Qualified Applicants.
- 5.6. GEOGRAPHICAL DISTRIBUTION.** The Board shall approve grants in a variety of geographic areas of the state to the extent that it is practicable to do so.

CATPA 6: GRANT AWARD AMOUNT AND BOARD NOTIFICATION

Subject to the funds available for a grant cycle, the Board shall approve grants under §42-5-112 (3) (B), CRS, these rules, and the guidance set forth by the most current publication of the CATPA GMG.

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- 6.1. APPROVAL CRITERIA.** The Board shall predicate approved grant amounts upon consideration of the following criteria:
- 6.1.1.** Existing activities or programs addressing the (same or substantially similar) automobile theft problem.
 - 6.1.2.** Statistical analyses of automobile theft problems in the identified project area.
 - 6.1.3.** Cooperation and coordination with other agencies/projects to address automobile theft problems.
 - 6.1.4.** Proposed plan for automobile theft crime prevention, enforcement, prosecution, and training.
 - 6.1.5.** Number of personnel necessary to satisfy and continue essential objectives and activities of the program, considering the estimated number of regular and potential overtime hours requested for funding, contributed personnel by the grant applicant, and cost to sustain the continuation of personnel.
 - 6.1.6.** Applicant's experience, qualifications, and past performance. Experience, qualifications, and past performance are demonstrative of the ability of an applicant to operate a proposed project successfully.
 - 6.1.7.** Identification of critical, essential, and supplemental funding level requests consistent with guidance set forth within the CATPA GMG.
- 6.2. BOARD RECOMMENDATION FOR FUNDING.** The Board will notify all applicants submitting applications during an announced submission period of its decision to approve or deny an application in writing. In addition to determining whether a proposal meets the requirements of the CATPA Grant Program:
- 6.2.1.** The Board may attach other conditions to the award of a grant recommendation.
 - 6.2.2.** The Board shall not require as a condition of receipt of a grant that an agency, political subdivision, or other Qualified Applicant provide any additional monies to operate a recommended program consistent with §42-5-112 (3) (b), CRS.
 - 6.2.3.** The Board will award grant programs consistent with funding appropriations or any statutory conditions applicable to its use. For example, General Fund Appropriation or transfer of money into the CATPA Cash Fund are limited to the Grant-Funded Initiatives specified in §42-5-112, CRS, which do not include training, law enforcement requests for items other than overtime, or other programs.
- 6.3.** An applicant may accept or decline program funding recommended by the Board consistent with the schedule within the CATPA GMG.
- 6.4.** Upon the Applicant's acceptance of the Board recommended funding, the signed final application will be forwarded to the CDPS Executive Director or their designee for signature and approval. Grant funding will not be finalized until a copy of the signed final application is received by the CATPA Office and sent to the grant award recipient by USPS or by email as agreed upon by the grant applicant and the CATPA Office.

CATPA 7. PROCEDURES TO REVIEW GRANT RECIPIENT PROGRAM SUCCESS AND COMPLIANCE

Grant recipients must submit program and financial reports monthly to the Board following grant application approval and funds disbursement.

- 7.1. REPORTING FORMS PROVIDING.** The Board will provide grant recipients with the forms necessary to submit required monthly financial and program progress/achievement reports.
- 7.2. BOARD REVIEW CRITERIA.** Board review of monthly reports submitted by grant recipients shall be consistent with the identified goals and objectives of the CATPA.
- 7.3. PROGRAM MONITORING.** The Board will monitor program implementation, financial administration, and achievement of declared program objectives consistent with §42-5-112 (3), CRS, these rules, and the CATPA GMG, as applicable.
- 7.4. BOARD FEEDBACK:** The Board will provide feedback to grant recipients submitting or failing to submit required monthly reports, or as appropriate and consistent with the statute, the goals and objectives of CATPA, these rules, and the CATPA GMG.
- 7.5. FAILURE TO PERFORM.** In the event a grant recipient fails to perform or complete required monthly financial and program progress/achievement reports, the Board may:
 - 7.5.1.** Elect to apply a Program Improvement Plan to the recipient to rehabilitate performance.
 - 7.5.2.** Recommend to the Director of the CDPS or his or her designee for revocation or suspension of the recipient's grant agreement, or
 - 7.5.3.** Recommend to the Director of the CDPS or his or her designee not to reimburse expenses.

Failure to perform or rehabilitate may also affect future consideration of applications submitted to the Board by the same applicant.

CATPA 8. CATPA ANNUAL GRANT PROGRAM REPORTING

The Board will submit an annual report to the Executive Director's Office concerning the benefit of CATPA Programs funded during the previous state fiscal year, ending June 30TH of every year. This report will include, but need not limit itself to:

- 8.1.** The number, type of initiative, geographic distribution, and award amounts of grant projects funded.
- 8.2.** The number and, if available, the per capita rate of reported stolen vehicles in geographical state areas during the state fiscal year concluding on June 30th, as compared to the prior state fiscal year.
 - 8.2.1** The report will correlate as much as is reasonable the relationship between the existence of a CATPA Funded Program and the rate of automobile theft in an area.
- 8.3.** An analysis of the estimated return of investment on the use of the CATPA Funds, which may include anecdotal, innovative, or non-statistical information demonstrating benefits realized in exchange for the investment of grant funds, and/or statistical data demonstrating:
 - 8.3.1.** The cost of investment identifying the expenditure of CATPA Grant Funds,

8.3.2. The value of investment resulting from the use of the CATPA Grant Funds, such as:

8.3.2.1. The number of recovered stolen vehicles attributed by CATPA-funded programs multiplied by the average dollar loss of a stolen vehicle as estimated by industry standards (e.g., Kelly's Blue Book, etc.) or the FBI analysis of motor vehicle theft using the Survival Model, or

8.3.2.2. The number of grant-funded activities multiplied by an average dollar value in addressing automobile theft, or

8.3.3. The return on investment of the CATPA Program is calculated by summing the difference between the total cost of investment and the value of investment and then dividing by the cost of the investment. The result of the return on investment will yield a percentage performance measure to be used to evaluate the efficacy of the CATPA Program.

8.4. As annual data is available and accumulates, the annual report will compare current year data against data from prior years to reveal trends in automobile theft, automobile theft-related crimes, and the potential effect of programs addressing either.

CATPA 9. PUBLICATIONS INCORPORATED BY REFERENCE

All publications, standards, guidelines, and rules adopted and/or incorporated by reference in these rules will be made available for public inspection at any state publications depository library as required by §24-4-103 (12), CRS.

9.1. The following publications, standards, guidelines, and/or rules are adopted within these rules consistent with §24-4-103 (12.5), CRS.

9.1.1. Colorado Automobile Theft Prevention Authority (2024). **CATPA Grant Managers Guidance Manual**. Lakewood, Colorado: Author.

9.2. The CSP CATPA Business Unit and the Board shall maintain copies of the complete texts of these rules and any incorporated or adopted publications, standards, guidelines, and rules and make each available for public inspection during regular business hours. Interested parties may contact the Board or the CSP CATPA Business Unit by phone at 303-239-4560 or by email at CDPS_CATPA@STATE.CO.US. Interested parties may also access the following material(s) at their convenience online:

9.2.1. Colorado Automobile Theft Prevention Authority (2024). **CATPA Grant Managers Guidance Manual**. [HTTPS://LOCKDOWNYOURCAR.ORG/GRANTS/](https://lockdownyourcar.org/grants/).

9.3. These rules do not include later amendments to or editions of any publications, standards, guidelines, or rules incorporated by reference herein except for statutorily mandated updates or forms and publications controlled by CATPA.

CATPA 10. SEVERABILITY

If any provision of these rules or the application thereof to any person or circumstance is determined to be unlawful or invalid, the remaining provisions of these rules will not be affected absent a specific reference.

Editor's Notes

History

Rules CATPA 1-12 eff. 6/30/04.

Rules CATPA 5, CATPA 6, CATPA 7, CATPA 10, and CATPA 11 eff. 5/1/05.

Entire rule eff. 04/30/2009.

Entire rule eff. 12/30/2020.

Entire rule eff. 07/01/2024.

Annotations

Rules CATPA 5, CATPA 6, CATPA 7, CATPA 10, and CATPA 11 (adopted 5/6/04) were not extended by Senate Bill 05-183 and therefore expired 5/15/05; Rules CATPA 5, CATPA 6, CATPA 7, CATPA 10, and CATPA 11 (adopted 3/17/05) were repealed by Senate Bill 05-183 effective 05/15/05.